

**VOLPE CENTER/OFFICE OF ACQUISITIONS
COMMERCIAL TERMS AND CONDITIONS**

FAR 52.252-2 Clauses incorporated by reference (FEB 98)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. (Also, the full text of a clause may be accessed electronically at these addresses):

<https://www.acquisition.gov/>

<https://www.acquisition.gov/tar>

FAR 52.252-6 Authorized Deviations in Clauses (NOV 20)

FEDERAL ACQUISITION REGULATION (FAR) and TRANSPORTATION ACQUISITION REGULATIONS (TAR) PROVISIONS AND CLAUSES INCORPORATED BY REFERENCE:

FAR Provision	Title	Source
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	Statute
52.204-7	System for Award Management—Registration (DEVIATION SEPT 2025)	Statute
52.225-2	Buy American Certificate	Statute
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications	Statute
52.240-90	Security Prohibitions and Exclusions, Representations and Certifications	Statute

The following FAR Clause also apply:

FAR Clause	Source
52.203-17 Contractor Employee Whistleblower Rights	Statute

52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Statute
52.204-13	System for Award Management (Alternate I)	
52.204-91	Contractor identification	Other
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Statute
52.212-4	Contract Terms and Conditions – Commercial Products and Commercial Services	Statute
52.222-19	Child Labor—Cooperation with Authorities and Remedies	EO
52.222-36	Equal Opportunity for Workers with Disabilities	Statute
52.222-50	Combating Trafficking in Persons	Statute
52.223-23	Sustainable Products and Services	Statute
52.226-8 Driving	Encouraging Contractor Policies to Ban Text Messaging While	EO
52.232-30 Services	Installment Payments of Commercial Products and Commercial	Statute
52.232-33 Management	Payment by Electronic Funds Transfer—System for Award	Statute
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Statute
52.233-3	Protest After Award	Statute
52.233-4	Applicable Law for Breach of Contract Claim	Statute
52.240-91	Security Prohibitions and Exclusions	Statute
52.240-92	with Alt II Security Requirements with Alternate II	Other

52.240-93 Basic Safeguarding of Covered Contractor Information Systems Statute

The following TAR clauses are incorporated by reference. The full text versions of these provisions/clauses can be found at <https://www.acquisition.gov/tar>.

- TAR 1252.232-70, Electronic Submission of Payment Requests. (TAR Class Deviation 2025-02_A1) (attached)
- TAR 1252.239-70, Security Requirements for Unclassified Information Technology Resources
- TAR 1252.239-71, Information Technology Security Plan and Accreditation
- TAR 1252.239-73, Limitations on the Use of Disclosure of Third-Party Contractor Reported Cyber Incident Information
- TAR 1252.239-93, Information and Communication Technology Accessibility

Electronic Submission of Payment Requests (TAR Class Deviation 2025-02_A1)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001.

(2) *Payment request* means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) *Invoice payment* has the meaning given in FAR 32.001.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Processing system.* The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called *iSupplier*. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform *login.gov*. Vendors submitting invoices are required to submit invoices via *iSupplier* (DELPHI) and authenticated via *www.login.gov*.

(d) *Invoice requirements.* To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in *iSupplier* (DELPHI) shall contain the following:

- (1) Invoice number and invoice date.
- (2) Period of performance covered by invoice.
- (3) Contract number and title.
- (4) Task/Delivery Order number and title (if applicable).
- (5) Amount billed (by CLIN), current and cumulative.

(6) Total (\$) of billing.

(7) Cumulative total billed for all contract work to date.

(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(TAR Class Deviation 2025-02 A1)

(10) The following statement “The Contractor certifies that, by submitting this invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it is in compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government’s payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal law, as interpreted by the Supreme Court in *Students for Fair Admissions v. Harvard*, 600 U.S. 181 (2023).”

(e) *Payment system registration.* All persons accessing the *iSupplier* (DELPHI) will be required to have their own unique user ID and password and be credentialed through *login.gov*.

(1) *Electronic authentication.* See www.login.gov for instructions.

(2) To create a www.login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then www.login.gov will reply with an email confirming the email address.

(3) *iSupplier* (DELPHI) registration instructions: New users should navigate to: <http://einvoice.esc.gov> to establish an account. Users are required to log in to *iSupplier* (DELPHI) every 45 days to keep it active.

(4) *Training on DELPHI.* To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>.

(5) *Account Management.* Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from

the system.

(f) *Waivers.* For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) *Exceptions and alternate payment procedures.* If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)